Sexual Harassment Prevention Policy & Agreement

Policy Statement

RTEC promotes an environment in which all can work, learn and live in an atmosphere free from all forms of harassment and discrimination. RTEC is an equal opportunity employer. Specifically, sexual harassment is a type of discrimination that is illegal under federal and state law and RTEC policy. It is defined as unwelcome conduct of a sexual nature that is so severe or pervasive that it creates a hostile environment for a reasonable person. A determination of whether particular conduct constitutes sexual harassment depends on the totality of the circumstances. Sexual harassment may occur between persons of differing power or between peers. It may also involve a female harassing a male, or a male or female harassing a person of the same gender. RTEC is committed to creating and maintaining an environment and service in which all persons who participate in RTEC programs and activities can work, learn and live together in an atmosphere free from all forms of harassment, exploitation, or intimidation. Sexual harassment is a violation of the law and RTEC policy. We are required by law to take proactive measures to prevent sexual harassment and to promptly and effectively resolve complaints when they occur. All members of the RTEC employees are subject to the Sexual Harassment Policy. We are all responsible for ensuring an environment that is free from all forms of harassment, exploitation or intimidation.

Definition of Sexual Harassment

Sexual harassment is any unwanted verbal or physical advances, sexually explicit derogatory statements, or sexually discriminatory remarks made by someone in the workplace which are offensive or objectionable to the recipient or which cause the recipient discomfort or humiliation or which interfere with the recipient's job performance.

Examples of Sexual Harassment

Sexual harassment may be verbal, visual or physical conduct. Examples include:

- Direct propositions of a sexual nature;
- Sexual innuendoes and other seductive behavior, including subtle pressure for sexual activity such as repeated, unwanted requests for dates, and repeated inappropriate personal comments, staring, or touching;
- Direct or implied threats that submission to sexual advances will be a condition of employment, promotion, grades, etc.;
- Unnecessary or unwanted touching, patting, massaging, hugging or brushing against a person's body or other unwanted conduct of a physical nature;
- Remarks of a sexual nature about a person's clothing or body;
- Invading someone's personal space or blocking her/his path;
- Unwelcome and inappropriate letters, telephone calls, electronic mail, or other communications or gifts.

Definitions

Quid Pro Quo: This for that. It refers to situations in which submission to sexually harassing conduct is made a term or condition of employment, or in which submission to, or rejection of sexually harassing conduct is used as the basis for employment decisions affecting the individual who is the target of such conduct. Example is: Promising a promotion in exchange for continuing a relationship.

Hostile Environment: Unwelcome and demeaning sexually related behavior that creates an intimidating, or offensive work environment. Example is: Listening to coworkers talk about their sex lives.

Retaliation: Negative action taken by the alleged harasser when the employee refuses requests for sexual favors, or reports the harassing behavior to a higher level. Example is: Refusing time off after a sexual harassment complaint is filed.

Reasonable Person's Standard: A hostile work environment must be judged from the perspective of a reasonable person. The standard considers the perspective of the person being harassed and NOT stereotyped ideas of acceptable behavior. Example is: Most people would have the same perspective on the same issue.

Complaint Resolution

The Executive Director or designee will utilize both informal and formal procedures for resolving sexual harassment complaints. RTEC encourages early reporting of concerns or complaints regarding sexual harassment because complaints are most effectively resolved at the earliest possible stage. Resolution options depend on the circumstances and may include education programs for particular individuals and mediation between the parties. Where informal resolution is unsuccessful or inappropriate, a formal complaint may be filed and a formal investigation undertaken. There is no prescribed sequence, so choosing one option first does not prevent a complainant from choosing a different option for resolution later on. Individuals may get advice or assistance without filing a complaint.

Contacts

If you or someone you know has a question about sexual harassment, please contact RTEC's Training Coordinator, your immediate supervisor, or another trusted member of Management.

Preventing Retaliation for Reporting Sexual Harassment

Threats, other forms of intimidation and retaliation against anyone for reporting sexual harassment or for assisting another in bringing a complaint are prohibited. Retaliation is a violation of the law and RTEC policy, and it is a serious offense. RTEC will take measures to protect those that complain of or witness incidents of sexual harassment.

Preventing Sexual Harassment

The first step towards eliminating sexual harassment from the workplace is prevention. **EVERYONE** should take steps to **prevent** sexual harassment from occurring in the first place.

Resources

The Training Coordinator can supply you with written materials, links to an informative website and informative video-training module about sexual harassment issues.

People must be reminded that offensive behavior is defined by a "reasonable" recipient. In third party situations, people are often unaware that their behavior is causing someone to be uncomfortable in the workplace. Quite often, once a situation is brought to their attention, those accused are embarrassed and will stop the behavior. If the request is ignored, the co-workers could be guilty of creating a hostile environment. People are often unaware that their behavior is making someone uncomfortable and will stop once they are informed. If you are unable to speak directly to the offending party, or, if you feel that you have been unsuccessful, report the event(s) to someone who can help send a clear message. The goal is for the offensive behavior to end. If it continues or becomes worse after putting the offending parties "on notice," disciplinary action should be considered.

- Remember that **everyone** has a responsibility to create and maintain a respectful work environment.
- Avoid behavior that has sexual overtones.
- Consider the effect of your words or actions on second & third party recipients.
- Don't ignore behaviors that make you feel uncomfortable. Speak up and do your part to resolve situations at the lowest level possible.

Unwanted requests for dates can be an example of subtle sexual harassment. In this scenario, the actual dialogue between the two parties must be assessed to determine how the request to date was refused. If, after a clearly communicated message the unwanted behavior continues, it must be viewed in the context of whether a reasonable person would find that the conduct created a hostile or abusive work environment. Sometimes, pioneers (i.e. the first or only male or female, lesbian or gay male, person with a visible disability, or other individuals from underrepresented groups) are targets of sexual harassment. Harassment occurs when one or more employees in the work group feels resentful, uncomfortable or intimidated by the presence of the new employee. The harasser seeks to establish a "we/they" atmosphere by focusing on the new employee's gender or sexual orientation to define him or her as different, incompetent, or not to be taken seriously. Be serious about stopping and preventing sexual harassment. Don't let negative attitudes about people come out at work. Remember it is **your** responsibility to do your work and follow the policies and procedures of your employer. In the case of sexual harassment, it could cost your employer a great deal of money in a court case. And, it could cost **you** your job! When you are at work remember to:

- Avoid behavior that has sexual overtones, including: complimenting a person's body; asking questions about a person's sex life; and/or asking to date someone who has repeatedly said *no.*
- Keep your work area decorated appropriately. There should not be posters, pictures or other items that some people could find offensive.
- Don't use sexual humor.
- Don't go overboard at office parties, picnics, or after work socializing - especially when alcohol is involved. You still have to work with these people. Your agency could be liable for damages even outside of work. Don't take the risk.
- Remember the rules of proper conduct to your agency's customers, vendors, suppliers, etc. Don't harass any of them or let them harass you.

It is not always easy to distinguish sexually harassing behaviors. Often, whether a behavior is sexual harassment, depends on the context of the behavior and the interpretation and perceptions of the recipient. Indeed, depending on the circumstances, if any of these behaviors were reported and unwanted and occurred over an extended period of time, they may be deemed a pattern of sexual harassment. The statements in this activity were a way to get you to think about the complexities of sexual harassment.

In deciding sexual harassment cases, the courts look at all circumstances on a case-by-case basis. Management, including supervisors, can be held responsible for sexual harassment in instances where they *knew or should have known* that inappropriate behavior was taking place, but failed to take action.

I have read and understand the RTEC Sexual Harassment Prevention Policy and by my signature below acknowledge and accept this document as applicable to my employment with RTEC. I agree to do everything in my power to help prevent sexual harassment in the workplace.

_____ _____

Printed Name *Signature*

_____ _____

Date Signed *Witness*